

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-30

NIELSEN & BAINBRIDGE, LLC

v.

OCEAN NETWORK EXPRESS PTE. LTD.

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Nielsen & Bainbridge, LLC (“NBG” or “Complainant”) and Respondent Ocean Network Express Pte. Ltd. (“ONE” or “Respondent”) (NBG, together with ONE, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

Complainant served its initial disclosures as required by 46 C.F.R. § 502.141(b) as of February 10, 2025. Since the issues are now clarified and narrowed following the severance of Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”), and ONE from NBG’s proceeding against Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen”), and Yang Ming Marine Transport Corporation (“Yang Ming”), Respondent served its initial disclosures on January 20, 2026. The Parties do not currently anticipate needing additional depositions or interrogatories in this case to the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions per party) and 502.145 (i.e., no more than 50 written interrogatories), respectively.

Pursuant to 46 C.F.R. § 502.64(a), the Parties have discussed plans, and emailed, to schedule a preliminary conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services ("CADRS") via a videoconference by the January 28, 2026 deadline, 15 days from service of Respondent's answer.

Consistent with the Presiding Officer's January 17, 2025 Initial Order in the original case FMC 25-02 case, the Parties have already met and conferred, and will shortly exchange a draft protective order concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case. The parties have also exchanged a draft protocol on electronically-stored information, determining appropriate custodians, data sources, and possible search terms to guide discovery in this case.

In terms of documentary discovery, Complainant's database of potentially responsive documents contains approximately 768.1 gigabytes of data. It is Complainant's experience that much of this data also exists as compressed electronic files which, once opened and expanded, yield a significantly higher data volume. This volume consists of approximately 3.4 million documents exclusively as it relates to emails and electronic files collected from specific custodians, with significant additional documents and data collected from Complainant's shared document files and other sources. After this initial data base has been electronically searched and narrowed, potentially responsive documents based on the Parties' written discovery requests must be manually reviewed for responsiveness, confidentiality, and privilege before they are prepared for production, a task which will take a significant amount of time. The volume of data which must be searched could grow, depending on the list of custodians agreed upon by the Parties.

As to the Respondent, based upon initial assessments of potentially responsive data from likely custodians, it anticipates a return of approximately 2.9 TB of data, which must be electronically searched for responsive documents. As is the case with Complainant, the individual

compressed files containing data typically produce great multiples of documents, which are expected to exceed 1.8 million from the Respondent. Like Complainant's data, the same required processes described above of searching and conducting manual review must take place.

In addition to responsive documents from the Parties, discovery in this case will also consist of responsive documents received by third-party logistics and drayage entities. On September 24, 2025, NBG served subpoenas on four third-party entities and has since received productions from three of those entities with a significant volume of documents. NBG is working to review those productions and shared them with Respondent on October 31, 2025 for their review as well. NBG intends to submit additional subpoenas to the Presiding Officer for approval for service which will in turn produce more responsive documents for the Parties to manually review. Respondent is still contemplating its own potential need to subpoena third-parties for information.

In the Presiding Officer's Order Severing Cases and Initiating Discovery served on December 31, 2025, the Parties, including OOCL, Evergreen, and Yang Ming, were instructed that "coordination is preferred" with respect to depositions that impact all three cases brought by Complainant. Given the need to keep the sensitive business data of each ocean carrier away from the others, coordination may be limited. However, to the extent it is practical, the Parties will cooperate with each other.

Even at this early stage, the Parties reasonably believe that discovery cannot be completed within 150 days of the service of a respondent's answer due to the expected magnitude of documentary evidence and corresponding depositions. However, until more details about the potential evidence and witnesses are determined, the Parties submit the following schedule:

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	February 9, 2026
Parties to serve objections and initial responses to initial RFPs	March 11, 2026
Parties to serve objections and initial responses to initial interrogatories	March 11, 2026
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	April 10, 2026
Substantial completion of productions of documents and ESI in response to initial RFPs	April 10, 2026
Parties to File Joint Status Report regarding status of discovery	April 17, 2026
Complete depositions of fact witnesses	May 11, 2026
Last day to serve interrogatories, requests for admission, and RFPs	May 11, 2026
Disclosure of initial expert reports, if any	May 21, 2026
Disclosure of rebuttal expert reports, if any	June 1, 2026
Complete expert depositions	June 12, 2026
Close of discovery	June 12, 2026
Complainant’s initial brief, proposed findings of fact, and appendix	August 11, 2026
Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	September 10, 2026
Complainant’s reply and responses to proposed findings of fact	September 25, 2026

Dated: January 23, 2026

Respectfully submitted,

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